

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-01

VISUAL COMFORT & CO.

v.

COSCO SHIPPING LINES CO., LTD.

JOINT STATUS REPORT AND PROPOSED SCHEDULE

The Presiding Officer’s Order on Joint Status Report and Scheduling dated August 20, 2024, required Complainant Visual Comfort & Co. (“Complainant” or “VCC”) and Respondent COSCO Shipping Lines Co., Ltd. (“COSCO” or “Respondent”) to file on August 30, 2024, a joint status report (“JSR”) addressing specified matters and proposing a revised schedule for the remainder of the proceeding before the Presiding Officer.

The Parties have made substantial progress since August 20, 2024. Respondent has run document searches based on the search terms proposed by Complainant. These searches were completed on August 29, 2024, and resulted in just under 400 documents. These will be reviewed for privilege and responsiveness and will be produced to Complainant likely next week, but in any event by the current deadline of September 9, 2024.

Complainant has also provided additional documents and will serve revised answers to interrogatories and requests for admission by September 9, 2024. Complainant has also conducted a forensic collection, which was performed by an electronic discovery vendor, reviewed those documents and completed its production of over 10,000 documents. Specifically, Complainant

collected more than 370,000 documents from 6 custodians which resulted in the production of over 10,200 documents completed on July 28.

The Parties have agreed upon a revised ESI protocol effective today.

The Parties are also cooperating in the scheduling of depositions for fact and expert witnesses. Each Party expects to depose at most three witnesses from the other side – two fact witnesses and one expert witness. Respondent also plans to depose one fact witness from RIM Logistics. Such depositions will be concluded within the deadline proposed below or such other date as the Presiding Officer shall set.

The Parties understand their obligation, set forth in the August 20, 2024 Order, to propose a schedule that will allow the Presiding Officer to issue her Initial Decision by January 6, 2025, and have agreed to the following proposed schedule:

Event	Deadline
Deadline for VCCs revised Responses to COSCO's Interrogatories and Requests for Admission	September 9, 2024
Deadline for COSCO's production of documents responsive to RFD6.	September 9, 2024
Last date to serve supplemental written discovery requests	September 9, 2024
Parties to serve objections and responses to supplemental written discovery requests served by September 9, 2024	September 23, 2024
Discovery ends	October 18, 2024
Complainant's opening brief due	November 8, 2024
Respondent's brief due	December 6, 2024
Complainant's reply brief due	December 20, 2024

The Parties realize that this schedule leaves limited room for the Presiding Officer to prepare her Initial Decision by January 6, 2025. Accordingly, if the Presiding Officer does not agree to the above schedule, which the Parties believe is the optimum for getting everything done without further requests for additional time, the Parties propose in the alternative as follows:

Event	Deadline
Deadline for VCCs revised Responses to COSCO's Interrogatories and Requests for Admission	September 9, 2024
Deadline for COSCO's production of documents responsive to RFD6.	September 9, 2024
Last date to serve supplemental written discovery requests	September 9, 2024
Parties to serve objections and responses to supplemental written discovery requests served by September 9, 2024	September 23, 2024
Discovery ends	October 4, 2024
Complainant's opening brief due	October 30, 2024
Respondent's brief due	November 26, 2024
Complainant's reply brief due	December 7, 2024

DATED: August 30, 2024

Respectfully submitted,

/s/ Jennifer M. Oliver

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